

CONTRACT TERMS AND CONDITIONS

A. Mandatory Contract Terms and Conditions. The following terms and conditions, as set forth below, must be included in any contract or ordering document within Loudoun County Public Schools.

1. Certification Regarding Sex Offenses.

- a. As a condition of awarding a contract for the provision of services that require the contractor or his employees to have direct contact with students on school property during regular school hours or during school-sponsored activities, the school board shall require the contractor to provide certification of whether any individual who will provide such services has been convicted of any violent felony set forth in the definition of barrier crime in subsection A of § 19.2-392.02; or any offense involving the sexual molestation, physical or sexual abuse, or rape of a child; or any crime of moral turpitude.
- b. Any individual making a materially false statement regarding any such offense is guilty of a Class 1 misdemeanor and, upon conviction, the fact of such conviction is grounds for the revocation of the contract to provide such services and, when relevant, the revocation of any license required to provide such services. School boards shall not be liable for materially false statements regarding the certifications required by this requirement.
- c. This requirement shall not apply to a contractor or their employees providing services to a school division in an emergency or exceptional situation, such as when student health or safety is endangered or when repairs are needed on an urgent basis to ensure that school facilities are safe and habitable, when it is reasonably anticipated that the contractor or his employees will have no direct contact with students.

2. Unauthorized Aliens. The School Board shall provide in every written contract that the contractor does not, and shall not during the performance of the contract for goods and services in Virginia, knowingly employ an unauthorized alien as defined in the federal Immigration Reform and Control Act of 1986.

3. Discrimination By Contractor Prohibited. During the performance of the contract, the contractor agrees as follows:

- a. The contractor will not discriminate against any employee or applicant for employment because of race, religion, color, sex, sexual orientation, gender identity, gender expression, socioeconomic level, national origin, age, disability, status as a service disabled veteran, or other basis prohibited by state law

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relating to discrimination in employment, except where there is a bona fide occupational qualification reasonably necessary to the normal operation of the contractor. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause.

- b. The contractor, in all solicitations or advertisements for employees placed by or on behalf of the contractor, will state that such contractor is an equal opportunity employer.
- c. Notices, advertisements and solicitations placed in accordance with federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirements of this section.
- d. The contractor will include the provisions of the foregoing paragraphs a, b and c in every subcontract or purchase order of over \$10,000, so that the provisions will be binding upon each subcontractor or vendor.

4. Immigration Reform and Control Act Compliance. The contractor does not, and shall not, during the performance of the contract for goods and services in the Commonwealth, knowingly employ an unauthorized alien as defined in the Immigration Reform and Control Act of 1986.

5. Forced and Indentured Child Labor Prohibition.

- a. Any contract for goods or services that exceeds \$10,000 shall include in such a public contract provisions (i) prohibiting the use of forced or indentured child labor in the performance of the contract and (ii) requiring that the contractor include such prohibition in every subcontract or purchase order that exceeds \$10,000, so that the prohibition will be binding upon each subcontractor or vendor.
- b. For the purposes of this section, "forced or indentured child labor" means all work or service (i) exacted from any person younger than 18 years of age under the menace of any penalty for the nonperformance of such work or service and for which such person does not offer himself voluntarily or (ii) performed by any person younger than 18 years of age pursuant to a contract the enforcement of which can be accomplished by process or penalties.

6. Compliance with State Law.

- a. No term or provision in any public contract for the acquisition of

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information technology goods or services shall be valid or enforceable to the extent that it is in conflict with Virginia law. A public contract containing such a term or provision shall otherwise remain enforceable.

- b. Any term or provision in such a public contract that (i) makes the public contract subject to, governed by, or interpreted under the laws of another state or country or (ii) requires or permits any litigation or other dispute resolution proceeding arising from the public contract to be conducted in another state or country shall be void. Such public contract shall instead be deemed to provide for the application of the law of the Commonwealth of Virginia, without regard to such contract's choice of law provisions, and to provide for jurisdiction in the courts of the Commonwealth.
- c. As used in this section, "information technology goods and services" means communications, telecommunications, automated data processing, applications, databases, data networks, management information systems, and other related goods and services.

7. Venue. Venue for any claim under a contract or arising out of an order is exclusively in the state courts of Loudoun County, Virginia or the United States District Court for the Eastern District of Virginia, Alexandria Division.

8. Choice of Law. Any contract or ordering document will be governed for all purposes by and construed in accordance with the laws of the Commonwealth of Virginia.

B. Prohibited Contract Terms and Conditions. The following terms and conditions shall have no effect or be enforceable against LCPS when enacting a contract with a vendor.

- 1. Requiring LCPS to obtain or maintain any type of insurance on behalf of or to benefit a contractor;
- 2. Renewing or extending the agreement beyond the initial term or automatically continuing the contract period from term to term;
- 3. Requiring or stating that the terms of contractor's contract/agreement/proposal documents shall prevail over LCPS terms and conditions;
- 4. Requiring LCPS to defend, indemnify, waive, release, or hold a contractor harmless for claims of any kind;
- 5. Requiring LCPS to pay liquidated damages, or requiring LCPS to make any

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payment for lost revenue or profits if the contract is terminated before its ordinary period;

6. Requiring LCPS to agree to or be subject to any form of equitable relief not authorized by the Constitution or laws of Virginia;

7. Limiting or adding to the time period within which claims can be made or actions can be brought;

8. Limiting the liability of a contractor for direct property damage or personal injury;

9. Permitting unilateral modification of any agreement by a contractor, or deeming LCPS to agree to a modification by means other than affirmatively signing a modification agreement on paper;

10. Binding LCPS to any arbitration process or decision as a means of conflict resolution;

11. Obligating LCPS to pay costs of collection or attorney's fees;

12. Granting a contractor a security interest in property of LCPS;

13. Granting any right or incurring any obligation that is beyond the legal authority of LCPS to empower its officers to grant or incur on behalf of LCPS, or requiring LCPS to violate any applicable law or regulation;

14. Requiring LCPS to pay for the application of sales tax;

15. Requiring LCPS to agree to any term or condition regarding confidentiality or proprietary information that is inconsistent with the Code of Virginia and applicable federal law, including, but not limited to the Virginia Freedom of Information Act;

16. Requiring LCPS to agree to any exclusivity clauses;

17. Requiring LCPS employees or other end users to enter into terms of use agreements or other agreements or understandings, whether electronic, click-through, verbal or in writing; and

18. Allowing Contractor to use LCPS in Advertising or allowing the use of any LCPS Seal or Mascot directly or indirectly, in any press release or in any form of advertisement without receiving prior written consent from LCPS.

C. Contractor Compliance

1. Before enacting a contract, vendors should be notified of the requirement for their compliance with the following as they relate to any LCPS Agreement and any

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Addendum.

- a. Virginia Freedom of Information Act (FOIA);
- b. Virginia State and Local Government Conflict of Interests Act;
- c. Virginia Fair Employment Contracting Act;
- d. Virginia Public Procurement Act (VPPA);
- e. Americans with Disabilities Act (ADA);
- f. Title VI of the Civil Rights Act of 1964 (24 CFR Part 1); and
- g. Governmentwide Debarment and Suspension, (34 CFR Part 85).

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